

Jai Prakash Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 January 2020 · Writ-C No. 744 of 2020 · **Impugned 26.11.2019 order quashed; Executive Engineer to hear objections and pass a speaking order; s.127 liberty reserved; order revives if petitioner defaults.**

HEADNOTE

Where the electricity department conceded that a final order had been passed without considering the consumer's objections, the High Court quashed the order dated 26.11.2019 and directed the Executive Engineer to hear the consumer and pass a speaking, reasoned order. Liberty to appeal under Section 127 of the Electricity Act, 2003 was reserved against that fresh final order. Failure to appear on the date fixed would revive the quashed order automatically.

FACTUAL SUMMARY

Jai Prakash Gupta challenged before the Allahabad High Court an order dated 26 November 2019 of the Executive Engineer, alleging coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department conceded that the final order had been passed without considering the petitioner's objections. The Division Bench disposed of the writ on that concession, with directions for a fresh hearing before the Executive Engineer.

REUSABLE CONSTRUCTIONS

1. A final assessment order passed without considering the consumer's objections is liable to be quashed; the assessing officer must hear the consumer and pass a speaking, reasoned order. ¶ 4-5
2. Where a quashed assessment is remitted for hearing on a fixed date, the consumer's failure to appear revives the quashed order automatically. ¶ 7
3. After a fresh final assessment passed on considering objections, the consumer's remedy is an appeal under Section 127 of the Electricity Act, 2003. ¶ 6

HOLDING-UNITS

HOLDING-UNIT · UP-2005

consideration of objections before final order

HOLDING

A final order passed without considering the consumer's objections, contrary to the U.P. Electricity Supply Code, 2005, is liable to be quashed. The Executive Engineer must hear the consumer on a fixed date, consider the objections and evidence, and pass a speaking and reasoned final order within four weeks. If the consumer fails to appear on the date fixed, the quashed order stands revived automatically. ¶ 3-5,7

HOLDING-UNIT · EA2003::127

appeal against fresh final assessment

HOLDING

If the consumer remains aggrieved by the fresh final order passed after considering objections, an appeal lies before the concerned authority under Section 127 of the Electricity Act, 2003. ¶ 6

PRINCIPLE TAGS

final-order-must-consider-consumer-objections

On the department's concession that the 26.11.2019 final order was passed without considering the petitioner's objections, the Court quashed it and directed a speaking order after hearing. ¶ 4-5

The Court reserved liberty to appeal under Section 127 against the fresh final order to be passed after the remanded hearing, without examining the assessment on merits. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ASSESSMENT AND OF THE PETITIONER'S OBJECTIONS

The Court quashed the 26.11.2019 order on the concession that objections were not considered and remitted for a fresh speaking order; it did not examine the underlying liability. ¶ 5

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.